

25CHCV03660 25CHCV03660

County: los-angeles

Division: Civil Law and Motion

Department: F47

Hearing date: 2026-07-17

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Case Number: 25CHCV03660 Hearing Date: July 17, 2026 Dept: F47

Dept. F47

Date: 7/17/26

Case #25CHCV03660

DEMURRER TO THE
ORIGINAL COMPLAINT

Demurrer filed on 2/13/26.

MOVING PARTY: Defendant Valencia Management Group

RESPONDING PARTY: Plaintiffs Celia Rodriguez, individually
and as successor in interest of Antonio Rodriguez; Anthony Rodriguez and
Christie Rodriguez

Demurrer is to 1st, 2nd and 4th
causes of action:

1. Negligence – Premises Liability
2. General Negligence
3. Statutory Liability/Dangerous Condition of
Public Property (not alleged against Valencia Management Group)
4. Survival Claim (CCP 377.34)

RULING: The hearing on the demurrer will be continued.

This action arises out of an incident that occurred on 9/2/24 when Antonio Rodriguez was riding his bicycle on Ricasoli Way, approximately 22 feet north of Red Hawk Lane in Northridge, when he collided with a steel barrier gate and was killed. (Complaint ¶¶ 8, 10). Plaintiffs Celia Rodriguez, individually and as successor in interest, Anthony Rodriguez, and Christie Rodriguez (collectively, Plaintiffs) filed this action on 10/13/25 against the developer, Toll Brothers, Inc., the City of Los Angeles, Valencia Management Group (VMG), Archon Protection, Inc., and Doe defendants.

After meet and confer efforts failed to resolve the issues VMG had with Plaintiffs' complaint, on 2/13/26, VMG, through attorney Jennifer Ryu of Swedelson Gottlieb filed and served the instant demurrer to the 1st, 2nd and 4th causes of action in the complaint. On 7/6/26, Plaintiffs filed and served an opposition to the demurrer. With regard to VMG, the proof of service shows that the opposition was served on attorneys at the Swedelson Gottlieb law firm. However, on 6/9/26, VMG filed and served a Substitution of Attorney indicating that it had substituted in Art H. Nguyen of Homan, Stone & Rossi, APC as its counsel in place of Jennifer H. Ryu of Swedelson Gottlieb. No reply to the opposition has been filed.

To ensure that VMG's counsel received the opposition and has an opportunity to file and serve a reply, if they so choose, the hearing on the demurrer will be continued.

Plaintiffs' counsel is ordered to immediately serve the opposition on VMG's current counsel of record. Any reply to the opposition is due to be filed and served at least 5 court days before the continued hearing date.